

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF SPECIAL MOTION TO
STRIKE PLAINTIFF'S FIRST AMENDED
COMPLAINT PURSUANT TO C.C.P. §
425.16 (ANTI-SLAPP MOTION)**

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendant respectfully requests that the Court take judicial notice of the following items,
2 pursuant to Evidence Code sections 452 and 453:

3 1. Plaintiff's operative First Amended Complaint in the instant action. (A true and
4 correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit A.)

5 2. Plaintiff's operative First Amended Complaint in the related action,
6 contemporaneously filed with this action. That action is entitled *Rosario v. Abdelhalim, et al.*, San
7 Francisco County Superior Court Case No. CGC-25-631801). (A true and correct copy is attached
8 to the Declaration of Tyler J. O'Connell as Exhibit B.)

9 3. Register of Actions, in *Rosario v. Abdelhalim*, San Francisco County Superior Court
10 Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration of Tyler J.
11 O'Connell as Exhibit C.)

12 4. Defendant's Substitution of Counsel, in *Rosario v. Abdelhalim*, San Francisco
13 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
14 Declaration of Tyler J. O'Connell as Exhibit D.)

15 5. Defendant's Motion in Limine # 6, filed in *Rosario v. Abdelhalim*, San Francisco
16 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
17 Declaration of Tyler J. O'Connell as Exhibit E.)

18 6. Defendant's Motion in Limine # 8, filed in *Rosario v. Abdelhalim*, San Francisco
19 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
20 Declaration of Tyler J. O'Connell as Exhibit F.)

21 7. Defendant's Motion in Limine # 17, filed in *Rosario v. Abdelhalim*, San Francisco
22 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
23 Declaration of Tyler J. O'Connell as Exhibit G.)

24 8. Order re Trial Scheduling and Motions in Limine, filed in *Rosario v. Abdelhalim*,
25 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
26 attached to the Declaration of Tyler J. O'Connell as Exhibit H.)

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1 9. Plaintiff's Judgment Notwithstanding the Verdict, filed in *Rosario v. Abdelhalim*,
2 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
3 attached to the Declaration of Tyler J. O'Connell as Exhibit I.)

4 10. Plaintiff's Declaration in Support of Judgment Notwithstanding the Verdict, filed in
5 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
6 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit J.)

7 11. Defendant's Opposition to Plaintiff's Judgment Notwithstanding the Verdict, filed
8 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
9 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit K.)

10 12. Plaintiff's Motion for New Trial, filed in *Rosario v. Abdelhalim*, San Francisco
11 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
12 Declaration of Tyler J. O'Connell as Exhibit L.)

13 13. Defendant's Opposition to Plaintiff's Motion for New Trial and Mistrial, filed in
14 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
15 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit M.)

16 14. Order on Plaintiff's Post-Trial Motions, filed in *Rosario v. Abdelhalim*, San
17 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
18 to the Declaration of Tyler J. O'Connell as Exhibit N.)

19 15. Plaintiff's Prayer to Judge East re: Motion for Disqualification of Judge Wong, filed
20 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
21 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit O.)

22 16. Order Denying Plaintiff's "Prayer" and 170.6, filed in *Rosario v. Abdelhalim*, San
23 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
24 to the Declaration of Tyler J. O'Connell as Exhibit P.)

25 17. Plaintiff's Notice of Appeal, filed in *Rosario v. Abdelhalim*, San Francisco County
26 Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration
27 of Tyler J. O'Connell as Exhibit Q.)

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1 18. Plaintiff's Notice Designating Record on Appeal, filed in *Rosario v. Abdelhalim*, San
2 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
3 to the Declaration of Tyler J. O'Connell as Exhibit R.)

4 19. Defendant's Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San
5 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
6 to the Declaration of Tyler J. O'Connell as Exhibit S.)

7 20. Plaintiff's *Original* Complaint in the instant action. (A true and correct copy is
8 attached to the Declaration of Tyler J. O'Connell as Exhibit T.)

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11 Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

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13
14 By _____
15 Chad S. Tapp
16 Tyler J. O'Connell
17 Attorneys for Defendant
18 CSAA INSURANCE EXCHANGE
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1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF SPECIAL MOTION TO STRIKE**
8 **PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. § 425.16**
9 **(ANTI-SLAPP MOTION)**

10 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 11 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 12 States Postal Service, in a sealed envelope with postage fully prepaid.
13	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 14 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 15 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 16 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 17 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 18 party's residence with some person not younger than 18 years of age between the hours of eight in the 19 morning and six in the evening.
20	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an 21 overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for 22 collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery 23 carrier.
24	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail 25 address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 26 1010.6(a)(2), (4) and (5).

27 Addressed as follows:

28 **PLAINTIFF, IN PRO PER**

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing
is true and correct. Executed on Sacramento, California on April 9, 2026.

Monique Schubert
Monique Schubert